

SUBJECT: Amending juvenile court processes and planning for services for juveniles

COMMITTEE: Youth Health & Safety, Select — committee substitute recommended

VOTE: 7 ayes — S. Thompson, Hull, Allison, Capriglione, A. Johnson, Landgraf, Lozano

0 nays

2 absent — Dutton, T. King

WITNESSES: For — Elizabeth Henneke, Lone Star Justice Alliance; Alycia Castillo, Texas Center for Justice and Equity; Nikki Pressley, Texas Public Policy Foundation; (*Registered, but did not testify* Amanda List, AList Consulting; Jolene Sanders Foster, Coalition of Texans with Disabilities; Justin Keener, Doug Deason; Paige Duggins-Clay, IDRA; Rebecca Fowler, Mental Health America of Greater Houston; Lesley Rivas, Mexican American School Boards Association; Kristian Caballero, Martin Martinez, Texas Appleseed; Suzi Kennon, Texas PTA; Christine Busse, The National Association Of Social Workers Texas Chapter; Jennifer Allmon, The Texas Catholic Conference of Bishops; Ashley Harris, United Ways of Texas; Susana Carranza; Francesca Leahy; Thomas Parkinson)

Against — Jennifer Toon

On — Lauren Rose, Texas Network of Youth Services; (*Registered, but did not testify*: Sarah Abrahams, Erica Banuelos, Marta Talbert, DFPS; Eric Marin, TEA)

DIGEST: CSHB 16 would amend and revise provisions related to judicial proceedings under the Juvenile Justice Code. The bill also would add new provisions related to the following:

- a community-based diversion and intervention plan;
- community reinvestment funds;

- incentive funding for community-based diversion and intervention; and
- a credit toward a child's minimum length of stay.

Detention hearings. CSHB 16 would add provisions related to the procedure for detention hearings.

The bill would require the court, at the conclusion of the detention hearing, to refer the child to the Department of Family and Protective Services (DFPS) for early youth intervention services if the child was not released from detention due solely to a finding that:

- suitable supervision, care, or protection for the child was not being provided by a parent, guardian, custodian, or other person; or
- the child had no parent, guardian, custodian, or other person able to return the child to the court when required.

On receipt of such referral, DFPS would be required to conduct an early youth intervention services review no later than 72 hours, excluding weekends and holidays, after the conclusion of the detention hearing and to submit the review to the court.

The bill would require a court that referred a child to DFPS to consider the youth intervention services review as soon as practicable after receipt of the review and to release the child, if appropriate, no later than the 10th working day after the date of the conclusion of the hearing.

Waiver of jurisdiction and discretionary transfer to criminal court. CSHB 16 would add a provision relating to the procedure by which a juvenile court could waive its exclusive jurisdiction and transfer a child to a district court or criminal district court for criminal proceedings. The bill would establish a presumption, within a hearing to consider the discretionary transfer of a child to another court, that it was in the best interest of the child and of justice that the juvenile court retain jurisdiction over the child. The burden would be on the state to overcome this presumption.

CSHB 16 would require that certain components be added to the statement of reason provided by a juvenile court that waived its jurisdiction. The bill would require the statement of reason to:

- include sufficient specificity to permit meaningful review;
- provide case-specific findings of fact that do not rely solely on the nature or seriousness of the offense; and
- refer to relevant mitigating evidence.

Mitigating evidence would be defined as evidence or information that was used to assess the growth, culpability, and maturity of a child and took into consideration the diminished culpability of juveniles, as compared to that of adults, the hallmark features of youth, and the greater capacity of juveniles for change, as compared to that of adults.

Disposition hearings. During a disposition hearing, CSHB 16 would require that no disposition be made unless the court had first considered mitigating evidence of the child's circumstances.

Special commitment to Texas Juvenile Justice Department. The bill would authorize the court to consider mitigating evidence of the child's circumstances before making a special commitment finding that the child had behavioral health or other special needs that could not be met with the resources available in the community.

Hearing to modify disposition. CSHB 16 would add a provision relating to the procedure by which a court would modify a disposition so as to commit a child to the Texas Juvenile Justice Department (TJJD). Before committing a child to TJJD, the bill would require the court to make a special commitment finding.

Sanction level six. CSHB 16 would authorize TJJD to reduce the duration of the period in which a child who committed certain high level felonies (sanction level six) was required to participate in a highly structured residential program. TJJD would be required to document the reason for

such a reduction.

The bill would also remove the option for courts to commit a child to a post-adjudication facility. This provision would not apply to a child currently committed to a post-adjudication correctional facility under the statutes currently in effect.

Early youth intervention services. Rather than authorize DFPS to provide early youth intervention services to an at-risk child, CSHB 16 would require DFPS to provide such services. The bill would raise the maximum age at which a child could be eligible for such services from 10 to 13 years old. The bill also would remove the requirement that a county be contracted with DFPS in order for services to be provided.

The bill would repeal a provision prohibiting DFPS from providing early youth intervention services to a child who had been referred to juvenile court for violating a felony-grade state law or had been found to have engaged in delinquent conduct.

Community-based diversion and intervention plan. CSHB 16 would require TJJD to develop, and the Juvenile Justice Board to adopt, a strategic diversion and intervention plan to establish a network of community-based programs and services within defined geographic regions of Texas for the purposes of rehabilitating and keeping children closer to home rather than placing children in post-adjudication secure correctional facilities. The bill would required the plan to develop or update the inventory of community-based programs and services provided by local juvenile justice organizations and community-based organizations that serve juveniles.

The plan also would be required to create an intercept map that identified and plotted certain data within the juvenile justice system as well as the following:

- describe barriers to securing rehabilitative and programmatic mental health and therapeutic treatment service providers in rural,

- multicounty, and regional jurisdictions;
- identify ways in which research-validated initial risk assessments could be utilized to connect resources with risk and protective factors identified in the assessments to create individualized diversion plans;
 - highlight state and national models for community-based collaborations and cross-system partnerships for assessments and referrals of juveniles in need of certain mental health and substance use services;
 - develop a model memorandum of understanding and provider contract for community-based programs and services;
 - describe and track the dispositional impact of the variability of diversionary community-based programs and services on court decisions to detain children in post-adjudication secure correctional facilities;
 - identify effective strategies for leveraging community resources and strengths to divert children from placement in post-adjudication secure correctional facilities;
 - include a description of various community-based programs and services that promote and incorporate trauma-informed services, equity- and culturally responsive services, gender-specific services, family involvement, wraparound services, and services that promote rehabilitative juvenile services through a therapeutic perspective; and
 - examine any other issue pertaining to juvenile justice service providers and community-based infrastructure in Texas.

The Juvenile Justice Board would also be required to appoint a task force, in collaboration with the department's regionalization division to consult with the department in developing the plan. The task force would be composed of certain designated individuals. CSHB 16 would require TJJD to submit a copy of the plan to each member of the Legislature no later than December 1, 2024.

Community reinvestment fund. CSHB 16 would require each county to establish a community reinvestment fund. The juvenile board or juvenile

probation department of the county would be required to partner with research-based service providers in the community to use money in the fund to provide services as an alternative to juvenile detention for youth. Such services could including mentoring, behavioral or mental health services, financial or housing assistance, job training, educational services, and after school-activities. The fund could be funded by the county, surplus TJJD funds, or gifts, grants, and donations.

Incentive funding for community-based diversion and intervention.

The Legislature would be authorized to establish a special account in the general revenue fund to supplement local funds and encourage efficiencies in the formation of a network of community-based services throughout the state while generating savings by decreasing the number of post-adjudication correctional facilities.

TJJD would be required to use the money in the account to initiate and support the implementation of the strategic community-based diversion and intervention plan. The bill would require TJJD to develop discretionary grant funding protocols based on documented, data-driven, and research-based practices.

A region would be eligible to receive funding from TJJD only if the region met the performance standards established by TJJD and created available contracts for community-based programs and services. This funding would be authorized in addition to the reimbursements allocated by the TJJD under the regionalization plan.

TJJD would be required to prepare a report that:

- outlined the amount of funds distributed as incentive for the specific strategies program, and services implemented as part of the community-based diversion and intervention plan;
- defined efficiencies of scale in measurable terms;
- proposed a payment schedule for distributing funds under the special account;
- established a method for the documentation and reporting of fund distributions.

CSHB 16 would require TJJD to submit a copy of the report to each member of the Legislature no later than December 1, 2024.

Minimum length of stay. CSHB 16 would add a requirement regarding the minimum length of stay for each child committed to TJJD without a determinate sentence.

The bill would require the department to give credit toward the minimum length of stay established for the child for time spent in a pre-adjudication secure detention facility after commitment but before the child's transfer to TJJD.

The bill would take effect September 1, 2023, and the provisions relating to juvenile court proceedings would apply only to a hearing that occurred on or after that date.

SUPPORTERS
SAY:

CSHB 16 would enhance the juvenile court system's ability to divert youth away from confinement in TJJD facilities. Since its inception, TJJD has experienced instability and intermittent crises that have affected the agency's ability to effectively treat and rehabilitate youth. This instability also has prevented the agency from focusing on reforms intended to keep youth closer to home. Treating youth locally, within their communities is believed to provide greater opportunities for rehabilitation than confining youth in overburdened and understaffed facilities in rural areas across the state. CSHB 16 would establish processes in the juvenile court system reflecting the understanding that community-based services and local interventions are the most appropriate setting for rehabilitating youth. By increasing court involvement in the juvenile justice process, establishing stricter standards for detention, and creating a presumption that a juvenile facility is the last resort, CSHB 16 would ensure that fewer juveniles are committed to TJJD, providing more opportunities for youth to be treated in their communities.

The bill also would ensure that the juvenile justice system was engaging community resources effectively. To appropriately treat and rehabilitate

youth at the local level, the juvenile justice system requires community infrastructure that engages a network of stakeholders and service providers. By requiring TJJD to adopt a diversion and intervention plan and counties to establish funds for community-based interventions, CSHB 16 would ensure that the juvenile justice system is properly equipped with the information and resources needed to rehabilitate youth locally.

By increasing collaboration between TJJD and DFPS, CSHB 16 would provide opportunities for the entire family system to access rehabilitation services. Recognizing that youth involved in the justice system could benefit from wraparound services involving family, CSHB 16 would allow DFPS to provide early youth intervention services, including crisis family intervention and parent counseling, to certain youth and their families.

By increasing opportunities for courts to divert youth from TJJD commitment, CSHB 16 could save the state money, as community supervision of youth costs less than confinement. Additionally, the bill could save taxpayer dollars due to the long-term savings associated with better rehabilitation outcomes. Treating youth closer to home can reduce recidivism, which could result in fewer arrests and reduced incarceration. Further, youth who are rehabilitated could be more likely to obtain employment and contribute to the economy in the future.

CRITICS
SAY:

CSHB 16 would not go far enough to transform the juvenile justice system. While CSHB 16 would rightly prioritize local treatment and interventions over TJJD commitment, reforms also should include the closure of the five remaining TJJD facilities, as an incarceration-based system should not be used for treatment and rehabilitation.

OTHER
CRITICS
SAY:

While the juvenile justice system should focus on keeping youth close to home, CSHB 16 may not have the consequences it intends. The early youth intervention services and community based providers identified in the bill may not be adequately structured, equipped, or funded to serve the high-risk youth population that would be referred to them. CSHB 16 should focus more on funding and developing the community resources

that would be intended to support justice-involved youth.

NOTES: According to estimates by the Legislative Budget Board, the bill would have a negative impact of \$3,919,184 in general revenue related funds in fiscal 2024-25.